VAR-MFP-02 Sinfin Lane - scan to email - 4 pages - colour: off

SUPPLY AND INSTALLATION AGREEMENT

Dated _____ 2023

VARNHOLT AEROSTRUCTURES LIMITED
as Buyer

and

QUELLCREST ROBOTICS LTD
as Supplier

relating to the design, manufacture, supply, delivery, installation, testing and commissioning of six robotic drilling and fastening cells at Sinfin Lane Works, Derby

Calder & Wynne LLP
40 Aldgate Wharf
London EC3N 4QT
Ref: CW/VAR/0141

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THIS AGREEMENT is dated _____ 2023

PARTIES

(1) VARNHOLT AEROSTRUCTURES LIMITED, incorporated and registered in England and Wales with company number 07731846, whose registered office is at Sinfin Lane Works, Calloway Road, Derby DE24 9GN (the "Buyer"); and

(2) QUELLCREST ROBOTICS LTD, incorporated and registered in England and Wales with company number 10482277, whose registered office is at Unit 7, Tolland Park, Brackenhurst Road, Coventry CV3 4RZ (the "Supplier"),

each a "Party" and together the "Parties".

BACKGROUND

(A) The Buyer manufactures wing ribs and spars at Sinfin Lane Works, Derby, and wishes to automate the drilling and fastening of its A-series rib family.

(B) The Supplier, a subsidiary of Quellcrest Automation Inc. of Ohio, designs and installs robotic drilling and fastening systems.

(C) Following a tender, the Buyer has agreed to purchase and the Supplier to supply and install six such cells on the terms of this Agreement.

AGREED TERMS

1. DEFINITIONS AND INTERPRETATION

1.1 The definitions and rules of interpretation in this clause 1 apply in this Agreement.

"Acceptance" means, in respect of a Cell, the successful completion of the SAT for that Cell in accordance with clause 8, and "Accepted" shall be construed accordingly. The date of Acceptance is determined in accordance with clause 8.8.

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EXECUTION

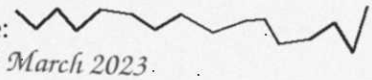
This Agreement has been entered into on the date stated at the beginning of it.

Signed by GRAHAM PETRAKIS, Managing Director, for and on behalf of VARNHOLT AEROSTRUCTURES LIMITED

Signature: 

Date: 14 March 2023

Signed by MALCOLM FERRIS, Director (Chief Financial Officer), for and on behalf of VARNHOLT AEROSTRUCTURES LIMITED

Signature: 

Date: 14 March 2023

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Signed by DOUGLAS FENN, Managing Director, for and on behalf of QUELLCREST ROBOTICS LTD

Signature: 

Date: 14 March 2023

Signed by GARY WHITLOW, Director - Projects, for and on behalf of QUELLCREST ROBOTICS LTD

Signature: 

Date: 14/3/2023

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Execution page - Supply and Installation Agreement (Varnholt Aerostructures Limited / Quellcrest Robotics Ltd). This page forms part of the Agreement and is not to be detached. Each Party acknowledges receipt of an original counterpart of this Agreement, comprising clauses 1 to 28 and Schedules 1 to 5, on signature.

Signed at Sinfin Lane Works. Originals x2 - one each. Schedules 1-5 initialled on every page. DA

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